

Website Legal and Compliance Completion Package

Deaf Shark Coffee | Instructions for counsel accounting and technical implementation | 14 September 2026

Please use this package to complete the legal, accounting, and technical work needed before the website's payment, messaging, marketing, tracking, and automated deletion features are activated in production. The business decisions below are approved. Routine drafting and implementation choices should be resolved by the responsible professional without returning to the owner for another business questionnaire.

The attorney should make any legally required correction, the accountant should choose a conservative compliant recordkeeping treatment within ordinary professional practice, and the technical team should implement the approved result securely. If a requirement would materially change the business model, create a new recurring cost above ordinary vendor charges, or prevent the stated ordering model from operating, flag that issue with a recommended solution and the narrow decision still required.

1 Instructions and decision authority

- Treat the confirmed facts and business rules in this package as approved instructions.
- Correct legal drafting, accounting treatment, disclosures, workflows, and security controls as needed for compliance and reliable operation.
- Use the safest compliant interpretation when two reasonable approaches exist, and record the choice in the final implementation notes.
- Do not activate online payments, promotional email, advertising pixels, order-ready texts, or automated deletion until the acceptance criteria for that feature are met.
- Do not request or exchange passwords, secret keys, recovery codes, or full database exports by email. Use named accounts, role-based invitations, and approved secret storage.
- Return one coordinated completion package containing final legal documents, the approved retention schedule, an implementation report, test evidence, and a short list of any genuine owner decisions that could not be resolved professionally.

2 Confirmed business identity and contacts

Item	Confirmed instruction
Public brand	Deaf Shark Coffee
Entity used in supplied drafts	Deaf Shark Coffee, LLC, doing business as Deaf Shark Coffee. Counsel must verify the registered entity and any trade name from official records before final publication.
Store and pickup address	900 Green Lane, Union, New Jersey 07083
Customer and privacy email	help@deafsharkcoffee.com
Telephone	(908) 481-8884
Website	deafsharkcoffee.com
Order model	Pickup only. Website orders do not transfer automatically into Genius POS.
Expected scale	A small customer base is expected. Reassess privacy-law thresholds annually and before any targeted advertising or data-sharing change.
Data sale	The business does not sell personal information.

3 Confirmed ordering payment and refund rules

- Stripe is the selected online payment processor.
- Guest orders must be prepaid online.
- A customer's first account order must be prepaid online.
- After a successful first order, a returning account customer may choose online payment or payment at the store when that option is offered at checkout.
- The checkout may apply a credit-card surcharge. It must be disclosed clearly before order submission and must not exceed the lowest applicable limit, including actual processing cost, law, card-network rules, and processor terms. Debit and prepaid cards must not be surcharged unless counsel and the processor confirm that the specific transaction is permitted.
- A prepaid order receives a full refund if the customer cancels before preparation begins. The default operational cutoff is the earlier of staff changing the order to Preparing or staff beginning to make any item.
- After preparation begins, the order is final for change of mind, taste preference, late arrival, or failure to collect it. Nothing may waive a remedy required by law. Staff may remake or replace an incorrect, missing, defective, or substantiated quality item.
- If the shop cancels a prepaid order or cannot provide a paid item, the affected amount must be refunded to the original payment method.

4 Confirmed account rewards marketing and gift card rules

Program	Approved rule
Accounts and age	No account for anyone under 13. Customers aged 13 through 17 may use an account only with parent or guardian permission and involvement.
Policy acceptance	Account creation and ordering must record the exact Terms and Privacy Policy versions accepted, the acceptance time, and the required age or guardian confirmation.
Customer data	Keep account data while the account is active. Provide authenticated download and safe closure. On closure, delete or anonymize identifiers while preserving only records required for accounting, disputes, fraud prevention, legal holds, or suppression.
Rewards	Each award of points expires 12 months after the order or award that created it. Redeem the oldest eligible points first. Account closure forfeits unused points.
Discount stacking	Rewards, discounts, and promotional offers may not be combined unless the specific offer says otherwise.
Student discount	The current Kean and Wenzhou-Kean student discount is 10 percent, subject to eligibility verification and current program terms.
Birthday benefit	The current benefit is one free drink valued up to \$8, redeemable in store on the customer's birthday, subject to eligibility and current program terms.
Gift cards	Physical cards only for now. They are not sold online, never expire, and carry no inactivity fee. Operations must honor applicable New Jersey cash-redemption and anti-scam notice requirements.
Order-ready texts	Optional transactional text only. No marketing texts. Consent must be separate and voluntary, and STOP suppression must work.
Promotional email	Not live yet. Use an established provider that supports one-step unsubscribe, suppression, and a valid postal address. Do not send campaigns until those controls are tested.
Advertising pixels	Meta, Google, TikTok, and similar tracking are not live. Keep them disabled until the final inventory, policy disclosure, consent design, and withdrawal behavior are approved and tested.

5 Work for New Jersey counsel

Counsel should review the revised documents and the live customer journey together. The final language must describe the system that will actually be deployed, not a future feature or a generic template. Counsel may edit the supplied drafts directly and should resolve routine wording without returning to the owner.

- Verify the exact legal entity, assumed name, address, and authority to contract from formation, tax, banking, lease, insurance, or state records.
- Approve the Terms of Service and Privacy Policy, including the age 13 through 17 approach, policy-version acceptance, account closure, authenticated export, and retained transaction records.
- Approve the cancellation cutoff, prepared-food all-sales-final rule, no-show treatment, remake or replacement language, and the register or receipt disclosures required in New Jersey.
- Approve the point-lot expiration, oldest-first redemption, forfeiture on closure, amendment language, student discount, birthday benefit, referral terms, and no-stacking rule.
- Approve physical gift-card terms, New Jersey cash redemption for qualifying low balances, and the required scam warning or operational notice.
- Approve the online credit-card surcharge disclosure, amount rule, eligible card types, refund treatment, and any required receipt language under New Jersey law, card-network rules, and Stripe's terms.
- Review privacy-request verification, exceptions, deletion and anonymization, breach duties, vendor disclosures, cookies, optional messaging, and planned advertising tools.
- Review liability, warranties, dispute venue, small-claims treatment, New Jersey consumer-protection law, ADA accessibility exposure, and any Union Township, county, food-service, employment, or local disclosure requirement.

Counsel deliverables

- Final clean Terms of Service and Privacy Policy with effective dates and version identifiers.
- Final customer-facing refund, cancellation, no-show, surcharge, rewards, gift-card, and messaging disclosures, including where each must appear online and in the store.
- A short implementation checklist identifying every required consent, notice, record, timing rule, and prohibited practice.
- A redline or concise change summary and written confirmation that the final documents are approved for the stated New Jersey business model, subject to any clearly listed conditions.

6 Work for the accountant

The accountant should confirm the records needed for tax, payment, refund, chargeback, insurance, and financial-statement purposes. The working schedule proposes seven years for order, refund, tax, and financial records. If another conservative period is more appropriate, the accountant should choose it and document the reason without sending a new preference questionnaire to the owner.

- Approve a retention period for orders, refunds, taxes, discounts, surcharges, Stripe payouts and fees, payment status, disputes, and chargebacks.
- Specify the minimum fields that must remain after account deletion and which customer identifiers should be removed or tokenized earlier.
- Confirm treatment and reconciliation of sales tax, card surcharges, Stripe fees, refunds, partial refunds, failed payments, chargebacks, pay-at-store orders, rewards, discounts, and gift-card liabilities.
- Confirm backup and source-document periods and any legal-hold coordination needed before automated deletion.
- Identify the records needed to support daily closeout and reconcile website orders that do not enter Genius POS automatically.

Accountant deliverables

- A signed and dated retention schedule by record category.
- Specific deletion or anonymization instructions for the database and backups.
- A reconciliation procedure for Stripe, the website order database, pay-at-store transactions, refunds, surcharges, taxes, and Genius POS.
- Written approval of the financial and recordkeeping treatment, with any implementation conditions clearly listed.

7 Work for the technical team

The technical team should implement the final legal and accounting instructions in staging, test them with nonproduction data, and then deploy through the normal release process. A feature is not complete merely because its screen exists; the database record, authorization, failure handling, audit evidence, accessibility, and production configuration must also work.

Area	Required implementation
Database and policy records	Apply migration 0020 in staging and production. Preserve exact Terms and Privacy versions, timestamps, age or guardian confirmation, and optional text consent evidence. Verify backup and rollback procedures.
Stripe payments	Use secure Stripe Checkout or Payment Intents, server-side amount calculation, trusted webhooks, signature verification, idempotency, payment-state handling, refunds, and reconciliation. Create or release the kitchen order only after trusted payment confirmation for prepaid orders.
Payment eligibility	Enforce guest prepaid and first-account-order prepaid. Permit pay at store only for an eligible returning account. Define success, failure, retry, duplicate-submission, refund, and chargeback states.
Surcharge	Calculate no more than the lowest permitted amount and show it before final submission. Record the basis and amount. Do not guess a percentage or apply it to an ineligible card type.
Preparation cutoff	Record the earlier of the Preparing status change or actual preparation start. Use that timestamp to control automatic refund eligibility and preserve an audit trail.
Rewards	Store points as dated award lots, expire each lot after 12 months, consume oldest points first, and document a safe treatment for existing balances before enabling expiry.
Account export and closure	Test authenticated export and typed confirmation. Revoke sessions, remove profile and rewards data, retain minimal suppression, and anonymize order identifiers without deleting necessary financial records. Confirm authorization and repeat-request behavior.
Administrator security	Require a named administrator account for each person, Google multifactor authentication, least-privilege roles, no shared login, prompt removal of departed staff, access logging, and quarterly access review.
Twilio	Use the stored optional consent only for one order-ready text. Configure credentials securely, honor carrier STOP and START behavior, suppress opted-out numbers, log delivery status, and test with consent on and off. Do not send marketing texts.
Promotional email	Select a reputable low-volume provider with unsubscribe and suppression support. Authenticate the domain, include the postal address, import only eligible recipients, and test one-step opt-out before the first campaign.
Cookies and pixels	Inventory every cookie, SDK, tag, and recipient. Keep advertising tags disabled until counsel approves the disclosure and the consent system prevents loading before consent and honors withdrawal.
Retention automation	Do not enable scheduled deletion until counsel and the accountant approve the schedule. Then implement dry-run reporting, legal holds, backup rotation, logs, exception handling, and owner-approved production activation.
Accessibility	Audit sign-up, sign-in, account, menu, cart, checkout, order status, export, deletion, and consent controls against WCAG 2.2 AA. Test keyboard operation, focus, labels, errors, contrast, zoom, and screen-reader announcements.

Area	Required implementation
Production release	Use staging acceptance tests, a release checklist, monitoring, backups, incident contacts, and a post-deployment smoke test. Record the deployed policy versions and feature configuration.

8 Technical acceptance evidence

- Migration logs and schema verification from staging and production.
- Screenshots or test records for new acceptance, reacceptance, guest prepaid, first-order prepaid, returning pay-at-store, refund cutoff, export, closure, SMS opt-in and opt-out, and administrator MFA.
- Stripe test-mode evidence covering success, decline, abandoned payment, duplicate webhook, duplicate submission, refund, partial failure, and reconciliation.
- Accessibility findings and fixes for the critical customer flows, with any accepted residual issue assigned an owner and date.
- A production configuration inventory showing which email, SMS, pixel, retention, and payment features are enabled or intentionally disabled.
- A completion report listing deployed commit or release, database migration, test date, tester, unresolved risks, and rollback procedure.

9 Default assumptions that prevent routine questions

Question area	Default instruction
Preparation begins	Use the earlier of the order being changed to Preparing or a staff member beginning any item.
Surcharge amount	Use the lowest amount allowed by actual processing cost, applicable law, card-network rules, and Stripe. If card-type detection is insufficient, do not charge the surcharge for that transaction.
Marketing provider	The technical team may choose a reputable low-volume provider that supports domain authentication, one-step unsubscribe, suppression, export, and deletion. No campaign may start until counsel approves the final disclosure and the flow is tested.
Text messaging	Order-ready transactional text only, one message per opted-in order. No promotional text program.
Advertising tracking	No Meta, Google, TikTok, or similar advertising tag may load until the inventory, policy, and consent behavior are approved.
Retention	Use the current seven-year working period for financial design only. Keep automated deletion disabled until the accountant and counsel approve a signed schedule.
Rewards	No stacking unless the specific promotion states otherwise. Expire dated award lots after 12 months and use oldest points first.
Security	Use individual named accounts, multifactor authentication, least privilege, and no credential sharing.
Professional correction	Counsel, accounting, and technical personnel may correct ordinary legal, financial, drafting, and implementation details within this business model and must document the final choice.

10 Access and materials to provide

Provide access through role-based invitations and secure secret-management channels. Do not place credentials in this document or in the cover email. Give each professional only the access needed for that person's work.

- Official entity evidence such as formation record, W-9, lease, bank record, insurance declaration, and any trade-name filing.

DEAF SHARK COFFEE | COMPLETION PACKAGE

- Role-based access to the website repository, staging environment, production deployment, Cloudflare, domain and DNS, Google authentication and Workspace, Stripe, Twilio when opened, email provider when selected, and staging and production databases.
- Current store refund and gift-card signs, printed receipts, loyalty and promotion materials, customer-facing order confirmations, and staff operating instructions.
- A completed incident contact sheet naming the owner, backup owner, technical contact, cyber insurer and hotline, New Jersey counsel, bank, and critical vendor support contacts.

11 Attachments for review

- Deaf_Shark_Coffee_Legal_Audit_and_Redline_Summary.docx
- Deaf_Shark_Coffee_Privacy_Policy_Revised.docx
- Deaf_Shark_Coffee_Terms_of_Service_Revised.docx
- Deaf_Shark_Coffee_Data_Retention_and_Deletion_Procedure.docx
- Deaf_Shark_Coffee_Data_Breach_Response_Plan.docx
- DSC - Online Privacy Policy.docx, the prior supplied draft
- DSC_Terms_of_Use.docx, the prior supplied draft
- Relevant repository files, including drizzle/0020_legal_controls.sql, lib/legal-policy.ts, account onboarding, checkout, profile export, profile closure, SMS, rewards, and administrator authorization code

12 Required return package and sign off

Workstream	Owner	Required return	Completion standard
Legal	New Jersey counsel	Final policies, required notices, implementation checklist, and approval note	Entity verified; live practices accurately described; conditions and required placements identified
Accounting	Accountant or CPA	Signed retention schedule, deletion field list, and reconciliation procedure	Tax, payment, refund, surcharge, chargeback, backup, and POS records addressed
Technical	Lead developer or administrator	Implementation report, test evidence, release record, and configuration inventory	All approved controls operate in staging and production; disabled features remain disabled
Operations	Store owner or manager	Staff procedure, posted notices, incident contacts, and training record	Preparation cutoff, cancellations, refunds, gift cards, ready texts, and account questions handled consistently

Final approval should be recorded only after the legal documents, accounting schedule, production configuration, customer disclosures, staff procedures, and test evidence agree with one another. A policy posted on the website does not cure a conflicting checkout flow or store practice.